

24STCV20547 24STCV20547

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C06%2F30%2F2026

Source SHA-256: c3ef4abb1f9f9d76ba539f90702387cdaef3e451d37b30ef82f311ea38f1d9e3

Case Number: 24STCV20547 Hearing Date: June 30, 2026 Dept: 617

Dept.

617

Date:

6-30-26

Case

#: 24STCV20547

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Alpine F&B Corporation, Pocono Foods Corp., and Jay
Jeong Park

RESPONDING

PARTY: Plaintiff, Kimnori USA, Inc.

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

On

or about March 17, 2023, Plaintiff Kimnori USA, Inc. entered into an “OEM Manufacturing Agreement” with Defendant Alpine F&B Corporation for the production of seaweed food products. A month later, Alpine's President, Defendant Jay Jeong Park, informed Plaintiff's officers that he also owned and controlled Defendant Pocono Foods Corp. Plaintiff alleges Park represented that Pocono would assume the same terms of the OEM contract for any goods ordered and delivered to Pocono. Park further guaranteed the obligations of both Alpine and Pocono.

Plaintiff

claims that despite manufacturing and delivering its products to Alpine and Pocono, Defendants have refused to pay, resulting in an outstanding sum of \$93,564. On July 31, 2025, Plaintiff filed a First Amended Complaint for: (1) Breach of Contract; (2) Breach of Oral Contract; (3) Breach of Guarantee; (4) Fraud; and (5) Quantum Meruit.

RULING: Overruled.

Defendants demur to Plaintiff's First

Amended Complaint, arguing that Plaintiff fails to sufficiently state its causes of action and that its claims are uncertain. They further contend that the second through fifth causes of action suffer from a misjoinder of parties. Plaintiff opposes the demurrer, maintaining the sufficiency of its allegations and denying any uncertainty or misjoinder of parties. Defendants' demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions

of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].)

First Cause of Action: Breach
of Contract

Defendants argue that Plaintiff’s breach of contract cause of action fails because it does not allege when it delivered the goods to Alpine and when Alpine breached the contract. They further contend that Plaintiff’s damages claim is uncertain because it seeks the same amount of damages against all Defendants, despite the alleged existence of separate contracts.

The elements of a breach of contract cause of action are: “(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” (Miles v. Deutsche Bank Nat. Trust Co. (2015) 236 Cal.App.4th 394, 402.)

Plaintiff sufficiently alleges performance, breach, and damages. Defendants’ attack on the absence of allegations regarding time of performance and breach apparently rests on a statute of limitations argument. But this is immaterial because any breach must have occurred after the contract was formed in March 2023 and Plaintiff filed

its action in 2024, within the 4-year limitations period for written contracts. (Code Civ. Proc., § 337, subd. (a).) Plaintiff's damages allegations are also sufficient because it seeks the outstanding balance due on the contracts against all Defendants based on alter-ego and single enterprise theories. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 411; Tran v. Farmers Group, Inc. (2002) 104 Cal.App.4th 1202, 1219.) Plaintiff alleges Alpine and Pocono are "affiliated companies" controlled by Park and that Park "used these entities interchangeably or as shells to avoid liability and to commit fraud." [FAC ¶¶ 10, 25, 42.] Defendants' demurrer to this claim is thus overruled.

Second Cause of Action: Breach of Oral Contract

Defendants demur to the breach of oral contract cause of action based on the sham pleading doctrine. This doctrine applies where "a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings." (Owens v. Kings Supermarket (1988) 198 Cal.App.3d 379, 384.) "In these circumstances, the policy against sham pleading permits the court to take judicial notice of the prior pleadings and requires that the pleader explain the inconsistency. If he fails to do so the court may disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint." (Id. at p. 384.) Defendants argue that the allegations in the First Amended Complaint are inconsistent with those in the original complaint because the initial complaint only alleges Pocono was a party to the oral contract while in the amended complaint Plaintiff claims that Park was also a party to it.

The allegations in the First Amended Complaint and the original complaint are not inconsistent. Plaintiff adds in the amended complaint that Park "on behalf of himself and POCONO, orally agreed and promised to be bound by the same terms of the OEM CONTRACT." [FAC ¶ 26.] At most, this allegation further elaborates on Park's alleged oral promises to Plaintiff that he would be "personally responsible for all obligations of POCONO." [Compl. ¶ 10; FAC ¶ 10.] Defendants' demurrer to this claim is therefore overruled.

Third Cause of Action: Breach of Guarantee

Defendants contend that Plaintiff's breach of guarantee cause of action fails because it does not allege a written guaranty.

"A special promise to answer for the debt, default, or miscarriage of another" must be in writing and signed by the party to be charged. (Civ. Code, § 1624, subd. (a)(2).) An exception exists, however, "[w]here the promise is upon a consideration beneficial to the promisor, whether moving from either party to the antecedent obligation, or from another person." (Id. § 2794, subd. (4).) This so-called "main purpose rule" applies "whenever the leading and main object of the promisor is not to become surety or guarantor of another but to subserve some purpose or interest of his own" (Farr & Stone Ins. Brokers, Inc. v. Lopez (1976) 61 Cal.App.3d 618, 622.) "[T]he important question is whether the promise is only an assumption of another's liability or a new and primary obligation of the promisor." (Id. at p. 622.)

The main purpose rule is applicable to Park's alleged guarantee of Pocono's obligations under the oral contract. Plaintiff sufficiently alleges that the main purpose of Park's guarantee was to advance his own pecuniary interest as President of Pocono [FAC ¶¶ 4, 10, 33-35.] Defendants' demurrer to the breach of guarantee cause of action is thus overruled.

Fourth Cause of Action: Fraud

Defendants argue that Plaintiff's fraud claim fails because it does not allege "how, when, where, to whom, and by what means the representations were tendered."

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity; conclusory allegations are insufficient. (Id. at p. 645.) This requires "pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (Ibid.)

Plaintiff

has pled its fraud claim with requisite particularity. It alleges that on or about April 2023, Park orally represented to Plaintiff's officers, Kyungsun Hong and Sarah Hong, that he owned and controlled Pocono and that if Plaintiff "fulfilled orders issued by POCONO, both POCONO and PARK himself, individually, would be bound by the same terms and conditions contained in the OEM Manufacturing Agreement previously executed between PLAINTIFF and ALPINE under the OEM CONTRACT." [FAC ¶¶ 10, 38-39.] These allegations sufficiently state the circumstances and details of Park's alleged misrepresentations to Plaintiff. Defendants' particularity argument is therefore unavailing.

To

the extent Defendants challenge the fraud claim on the basis of the independent tort principle (see Demurrer at p. 10), this argument also fails. Where, as here, it is alleged that "a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41; *Lazar, supra*, 12 Cal.4th at p. 645; *Campbell v. Birch* (1942) 19 Cal.2d 778, 791; see also *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 841-43 [economic loss rule does not bar fraudulent inducement claim].) The independent tort principle is thus no bar to Plaintiff's fraud claim and Defendants' demurrer is overruled.

Fifth Cause of Action: Quantum

Meruit

Defendants' demurrer to the quantum meruit common count is overruled. Defendants contend that Plaintiff fails to state a count for quantum meruit because the count only applies to the rendition of services, not the provision of goods. While the correct count for "the reasonable value of goods sold and delivered" is quantum valebant (*SwiftAir, LLC v. Southwest Airlines Co.* (2022) 77 Cal.App.5th 46, 51, fn. 2.), the mere mislabeling of the count is not a reason to sustain the demurrer where it otherwise pleads a cognizable theory of recovery. (*Quelimane, supra*, 19 Cal.4th at p. 38.) The Court also declines to consider Defendants' argument that Plaintiff cannot pursue a quasi-contractual theory of recovery due to the alleged existence of a contract between the parties because this point was first raised in reply. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-28.) Defendants' demurrer to the common count is therefore overruled.

Defendants

to answer the operative complaint within 10 days.

Defendants

to give notice.